IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, GURUGRAM
CRIMINAL COMPLAINT CASE NO. ____ OF 2024

M/s Sunrise Metals Private Limited,
a company incorporated under the Companies Act, 2013,
having its registered office at 401, Sector 18, Gurugram - 122015,
CIN: U27100HR2012PTC046789,
through its Authorised Signatory Shri Deepak Chawla
... Complainant

Versus

Shri Mahesh Chandra Agarwal,
S/o Shri Ratan Lal Agarwal, aged about 49 years,
Proprietor, M/s Agarwal Steel Traders,
Plot No. 22, Industrial Area Phase-II, Ludhiana, Punjab - 141003
... Accused

COMPLAINT UNDER SECTION 138 READ WITH SECTION 142 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

The Complainant most respectfully submits as under:

1. That the Accused purchased steel goods from the Complainant and became liable to pay a sum of Rs. 18,75,000/- (Rupees Eighteen Lakh Seventy Five Thousand only), which is a legally enforceable debt and liability.

2. That in discharge of the said liability the Accused issued Cheque No. 745812 dated 15/03/2024 for Rs. 18,75,000/- drawn on Punjab National Bank, Ludhiana Branch, IFSC PUNB0123400, A/c No. 004561230078.

3. That the said cheque, on being presented for encashment, was returned unpaid by the banker vide Return Memo dated 08/04/2024 with the remark 'insufficient funds'. The Complainant received intimation of the dishonour on 10/04/2024.

4. That the Complainant issued a statutory notice of demand dated 20/04/2024 by registered post, which was duly served on the Accused on 24/04/2024, calling upon him to pay the said amount within fifteen days of receipt thereof.

5. That the Accused has failed and neglected to pay the said amount within the statutory period, and has thereby committed an offence punishable under Section 138 of the Negotiable Instruments Act.

6. That this complaint is filed within the period of one month from the date on which the cause of action arose under clause (c) of the proviso to Section 138, and this Hon'ble Court has jurisdiction under Section 142(2)(a) of the said Act.

It is therefore prayed that the Accused be summoned, tried and punished according to law, and be directed to pay compensation under Section 357 Cr.P.C.

Gurugram
Dated: 22/05/2024

Advocate for the Complainant
Shri Sanjay Kapoor
Enrolment No. P/2233/2009